

Independent Contractor Agreement (1099)

For individual technicians and specialists engaged by BVTech

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Effective Date: _____

Parties and Engagement

BVTech LLC ("Company") engages the individual identified below ("Contractor") to perform the services described in Exhibit A or written task assignments. Contractor controls the manner and means of performing the services, subject to the results-based requirements herein.

Contractor Name: _____

Address: _____

Email / Phone: _____

Rate: _____

Services Summary: _____

Status; Taxes; Benefits

Contractor is an independent contractor, not an employee. Contractor is solely responsible for federal and state taxes (including self-employment tax), and is not entitled to Company benefits, workers' compensation, or unemployment insurance through Company. Company will report compensation on Form 1099 as required. Contractor represents it is customarily engaged in an independently established trade consistent with this engagement.

Work Product; License

All deliverables, code, documentation, and materials created by Contractor within the scope of the services ("Work Product") are works made for hire to the fullest extent permitted by law; to the extent not, Contractor hereby assigns all right, title, and interest in the Work Product to Company. Contractor retains its pre-existing tools and generic know-how and grants Company a perpetual, royalty-free license to any pre-existing materials embedded in Work Product.

Confidentiality; Client Protection

Contractor shall protect Company and client Confidential Information (as defined in Company's standard NDA framework), use it only to perform the services, and return it upon request. For twelve (12) months after the engagement ends, Contractor shall not solicit Company clients Contractor serviced during the engagement for competing services.

Compliance and Conduct

- Comply with Company security policies while accessing client systems, including MFA and no credential sharing.
- Consent to background screening where required by client contracts.

- No subcontracting without written consent.
- Maintain any licenses/certifications applicable to the services.

Term; Termination

Either party may terminate at any time upon written notice; Company shall pay for satisfactory services performed through termination. Sections on work product, confidentiality, non-solicitation, and governing law survive.

General Provisions

Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this Agreement shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together

with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC

Contractor

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____